

U.P. Zila Panchayats (Apportionment of Income and Expenditure of Gram Sabhas) Rules, 1964

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State of Uttar Pradesh - Act

U.P. Zila Panchayats (Apportionment of Income and Expenditure of Gram Sabhas) Rules, 1964

UTTAR PRADESH

India

U.P. Zila Panchayats (Apportionment of Income and Expenditure of Gram Sabhas) Rules, 1964

Rule

U-P-ZILA-PANCHAYATS-APPORTIONMENT-OF-INCOME-AND-EXPENDITURE-OF-GRAM-SABHAS-RULES-1964 of 1964

Published on 8 April 1964

Commenced on 8 April 1964

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U.P. Zila Panchayats (Apportionment of Income and Expenditure of Gram Sabhas) Rules, 1964

Published vide Notification No. 2888-B/33-13-R-61, dated 8th April, 1964

In exercise of the powers under Section 237 of the Uttar Pradesh Kshettra Panchayats and [Zila Panchayats]

[Substituted by U. P. Act No. 9 of 1994.]

Adhiniyam, 1961 (U.P. Act

No. 33 of 1961

) read with clause (b) of Section 36 of the said Adhiniyam, the Governor of Uttar Pradesh is pleased to make the U. P.

[Zila Panchayats]

[Substituted by U. P. Act No. 9 of 1994.]

(Apportionment of Income and Expenditure of [Gram Sabhas]

[Substituted by U. P. Act No. 9 of 1994.]

) Rules, 1964. after previous publication with Notification No. 4840-A/33-13-R-61. dated March 5, 1964 as required under sub-section (2) of Section 237 of the said Adhiniyam :

1.

(1)

These rules may be called the Uttar Pradesh [Zila Panchayats]

[Substituted by U. P. Act No. 9 of 1994.]

(Apportionment of Income and Expenditure of [(Gram Sabhas]

[Substituted by U. P. Act No. 9 of 1994.]

) Rules, 1964.

(2)

They shall come into force from the date of their publication in the Gazette.

2.

(1)

The [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

may in April every year invite proposals from any [Kshettra Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

in the district regarding every such work as in its opinion is important and likely to benefit more than one [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

and by reason of the cost involved in its being carried out or otherwise cannot be undertaken by any [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

individually.

(2)

The [Kshettra Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

, when the proposals are invited from it under sub-rule (1), may in its discretion call for such proposals from any [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

in the area controlled by it.

(3)

After taking into account the proposals, if any, received from the [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

, the [Kshettra Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

shall formulate its own proposals and forward the same to the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

by the end of June of the same year. The [Kshettra Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

may, in its discretion, take the assistance of the Kalyan Samiti in formulating its proposal.

3.

(1)

After receiving the proposals from the [Kshettra Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

, the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

shall, as soon as may be possible, consider the proposals and finally decide the work or works which should be undertaken. The decision of the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

in this behalf shall be final.

(2)

The [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

shall, within thirty days from the date of decision under sub-rule (1), get an estimate of the work or works, as the case may be, prepared by its Abhiyanta or any other officer authorized by the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

in that behalf.

4.

On the basis of the estimates prepared under sub-rule (2) of Rule 3, the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

may, by special resolution to be passed before the month of October in the same year, require any [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

in the district to surrender to the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

portion of the income received by it from the taxes and rates imposed by it under the Uttar Pradesh Panchayat Raj Act, 1947 and the income received in consequence of the enforcement of its bye-laws framed under the said Act.

5.

(1)

The resolution shall specify the portion of the income which a [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

shall be required to surrender in any particular year to the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

:

Provided that the portion of income so required to be surrendered shall not exceed one-fourth of the total income of the [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

in that year :

Provided further that the funds to be collected from the [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

for the execution of the works shall ordinarily not exceed the total cost of such works.

(2)

The portion of the income to be so surrendered may be paid by the [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

on or before 30th June of the succeeding year.

6.

(1)

The amount received by the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

under Rule 5 shall be applied to such of the following works as will, in the opinion of the [Zila Panchayat]

[Substituted by U. P. Act No. 9 of 1994.]

, benefit more than one [Gram Sabha]

[Substituted by U. P. Act No. 9 of 1994.]

of the district :

(a)

construction of inter-village metalled roads;

(b)

construction of culverts;

(c)

cleaning and improvement of tanks:

(d)
construction of bunds, escapes, gullies; and

(e)
any other work of public utility.

(2)
If any balance is left after the execution of the works, it shall be carried forward and utilised in the next, or subsequent year when any new work is executed.

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